

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)

1. I recommend that Embassy of the United States Podgorica use other than full and open competition for the acquisition of **Internet Leased Line services**. The estimated cost for 12 months is ***9,360 Euros, which is 780 Euros per month.***

2. Nature and/or description of the action being approved.

ODC requires a continuation of internet services with the existing vendor who provides quality uninterrupted service. The Office cannot conduct operations without internet access, therefore uninterrupted internet access is of the utmost importance to the ODC.

The Ministry of Defense, where the ODC is physically located, also uses Crnogorski Telekom and therefore our continued use is in line with their network and physical security standards. ODC has inquired with MoD officials regarding the possibility of having another internet service provider install their equipment. Ministry of Defense is reluctant to allow another company to conduct the necessary work and has expressed concerns, based on the list of security requirements needed in advance of any installation works: "critical security details of the repair/installation crew that plans to change the routers and equipment, such as the full names, addresses, vehicle registration plates, date and timings, national id numbers, etc."

In the interest of not compromising the MoD's security arrangements, their infrastructure and our cooperative relationship, as well as maintaining full and uninterrupted operational capability, it is ODC Montenegro's recommendation to prepare contract for internet services with the same provider to replace the expiring contract.

3. A description of the supplies or services required to meet the agency's needs.

ODC requires fiber optics infrastructure, unlimited data transfer, connection speed 20Mbps/20Mbps (equal download and upload), and guaranteed level of quality service. These services should be provided in facilities of the Montenegrin Ministry of Defense.

4. An identification of the statutory authority permitting other than full and open competition. **41 USC 253(c)(1), FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements without an interruption of service.**

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

See item 1, 2 and 3.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).

See item 1, 2 and 3.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Crnogorski Telekom will provide a discounted price of 780 Euros per month if we sign a one-year contract, which saves the USG 1,560 per year compared to the price ODC has paid in prior years.

8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

See item 7.

9. Any other facts supporting the use of other than full and open competition.

None.

10. A listing of sources, if any, that expressed, in writing, an interest in the acquisition.

None.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

All efforts will be made to obtain competition in future procurement.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

2/27/2025

Date

Name: CDR Joseph Ballard

Title: Chief, Office of Defense Cooperation

Requirements Office: ODC

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

Date

Contracting Officer

I certify that the national security concerns of the referenced acquisition(s) meet the criteria set forth in Executive Order 12958 and FAR 6.302-6.*

Date

Name

Chief, Controls Division, Office of Intelligence
Liaison, Directorate for Coordination, Bureau of
Intelligence and Research

or

Chief, Information Security Programs Division,
Office of Information Security Technology, Bureau
of Diplomatic Security

* Only required when the justification is under the authority of FAR 6.302-6 and DOSAR 606.302-6, National Security. Reference DOSAR 606.302-6(c)(1) for the appropriate signatory authority and for the additional information, which must be included in the justification when using this statutory authority.

APPROVALS

Contracting Activity Competition Advocate
(Required for actions exceeding \$500,000 but not exceeding \$10,000,000)

APPROVED BY:

Date	Competition Advocate Contracting Activity
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Departmental Competition Advocate
(Required for actions exceeding \$10,000,000 but not exceeding \$50,000,000)

APPROVED BY:

Date	Principal Officer
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Date	Departmental Competition Advocate
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Procurement Executive Approval
(Required for actions exceeding \$50,000,000)

APPROVED BY:

Date	Procurement Executive
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NOTE:

Each review must be prepared by lower level approval(s), e.g., over \$50 million, all approvals are required. If any approval required is not received, the acquisition shall not proceed, except for acquisitions between \$500,000 and \$10 million where the contracting activity's Competition Advocate is not available and the Departmental Competition Advocate or Procurement Executive sign the approval (see FAR 6.304(a)(2)).